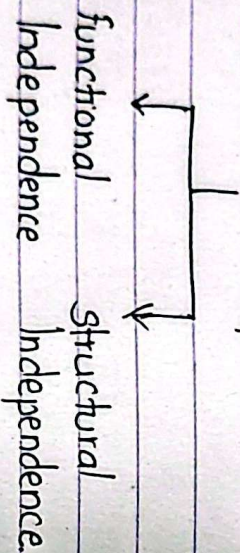


Misconception in regard to Independence of Judiciary:-

- Judicial Independence is independence from the law.
→ Not law, but from external pressure.

- JI is about individual judges being impartial.
→ two critical interdependent dimension.



- JI = Governance by judges.

→ Independence is about the process of decision making, not the outcome.

- JI is a binary concept (either Independent or Not)

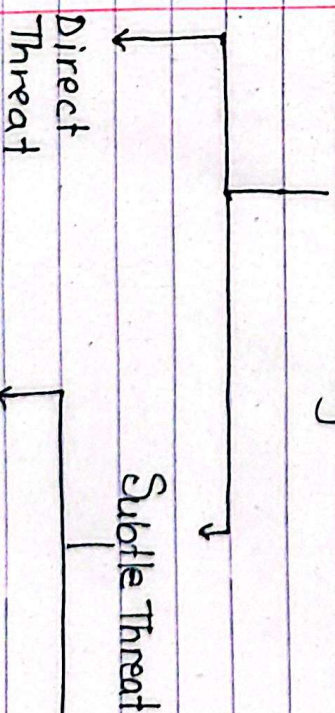
→ JI exists on a spectrum & it is a matter of degree.

court decision.
motivated impeachment proceedings.

- JI = Making "Good" / "Popular" Decision:
→ The purpose of JI is to ensure decisions that are legal & impartial, not necessarily popular / good.
Its core fn is to protect minority rights against majority rule.

- JI is solely a concern of the Judiciary & Lawyers.
→ JI is a public good.

③ Threats to Judiciary



Executive Legislative
Encroachment Encroachment
→ launching politically #
→ Passing laws to override specific #

(102)

- JI is not an absolute privilege for judges, it is a functional prerequisite for justice.
- An independent judiciary doesn't exist to serve itself, ~~but to serve itself~~, but to serve the public by ~~guaranteeing~~

Court Mgmt is the macro level administrative function dealing with overall operation of courts as institutions

Case Mgmt is micro level judicial & administrative fn focusing on the progress of individual case.

Unsolved problem

Unresolved debate - Eternal debate

Still have contemporary relevancy.

Algorithmic bias (of AI)

↳ Technology Ethics

↳ Rule of Algorithmic law

Gender Justice is NESTED with Inclusive Justice.

• Constitution Amendment द्वारा Admendor को Intention check नहीं हो framers को होता।

• Courts frequently comes under Cerebral Criticism as there is no single right answer.

→ Still the debate betn law & morality is ongoing.

→ There is no single theory of justice. The perspective of one judge varies from another to which theory to be prioritized.

→ Why then?
Just to put the conflict/disputes to an end.

* TJ is South Africa:

→ I am because We are. - Ubuntu Philosophy

- Legislative - Judicial Dialogue

- Pillars of TJ

1. Truth - Seeking
2. Justice & Accountability
3. Reparation programs
4. Institutional reforms.

- New Trends in TJ:

1. Shift from transitional justice to transformative justice.

2. Integration of Environmental crimes.

Conclusion:

- TJ is not a one-size-fit-all solution. It requires careful adaptation to local contexts while maintaining universal principles of human rights & dignity.

* Ethics for Judges:

Real life cases

- Brown Vs Board of Edⁿ.

- Nuremberg Trials

Challenges:

- political polarization
- globalization

Conclusion:-

Ethical principles are not abstract principles concepts but practical requirements that judges must embody to maintain public trust and ensure justice.

→ The anarchist tradition argues that justice can emerge from voluntary cooperation without state coercion.

* Decentralized Justice: coercion.

Indigenous Justice System

↓
Medieval Merchantile Law

↓
ADR: Mediation / Arbitration

↓
Blockchain platforms:- Kleros, Aragon Court

Case Studies

1. Rwanda's Gacaca courts
2. Kleros Blockchain Arbitration Cases
3. China Internet Eases Courts
4. Kenya's Dual System

Conclusion:

Decentralized Justice challenges traditional state-monopolized systems while offering innovative solution for accessible, culturally appropriate, & technologically-enabled dispute resolution.

Exam Strategy

1. Philosophical Underpinnings
2. Decision-Tree
3. Hypothetical Example.
4. Real-Life " / Case-studies
5. Critical Analysis.
6. Future Trajectory (आगे का रास्ता)
7. Criticism
8. Misconception & Myths & Fiction
9. Counter-Arguments & Contradictions & Controversy & Conflicts
10. Rival Theory / Principle
11. NOTABLE CASES:

Coordination

- Effective coordination must balance institutional independence.
- Coordination transforms individual institutional excellence into synergic effectiveness where whole becomes greater than sum of its parts.

$$1 + 1 > 2 \Rightarrow \text{synergy.}$$

Juvenile JS ✓
Why not: Youth JS ?

- The Test of Morality of a society is what it does for its children.

- Dietrich Bonhoeffer

- The will Theory (rooted in Enlightenment philosophy) posits that contracts derive their binding force from autonomous will of the contracting parties.

• Reliance Theory (Promissory Estoppel)

Mens Rea

Actus Reus

Voluntary Movement

↳ बोकासी न्यायको कसूर हुँदैन।

No voluntary movement.

Elements of Crime

Plea of Alibi (विपरीत स्थानमा रहेको जिकिर)

• Essential elements of Alibi Defence:

1. Physical Absence from crime scene
2. Presence at another specific location.
3. Temporal correspondence with crime.
4. Physical impossibility of presence.
5. Factual rather than legal defence.

The critical foundations

1. Presumption of Innocence

— The alibi defence embodies the fundamental principle that the prosecution must prove every element of the offense beyond reasonable doubt, including the accused's presence at the crime scene.

2. Physical Impossibility Doctrine:-

The defense rests on the logical principle that a person cannot be in two places simultaneously.

Types & Categories of Alibi:

1. Complete ~~vs~~ Partial Alibi
2. Partial Alibi
3. Proximate Alibi.

4. Fabricated Alibi
- * Genuine ^{vs} Alibi

- Accused need not prove alibi conclusively.
But it must be sufficient to raise reasonable doubt.

- Late alibi affects weightage of evidence.
↳ early disclosure → greater credibility
- Alibi can be raised during:
 - Pre-trial
 - During trial

③ The principle that a false alibi alone cannot establish guilt serves as an important safeguard against wrongful conviction.

- Plea of alibi must adapt to changing patterns, including cybercrime & transnational offences, where traditional concept of physical presence may require reexamination.

V.IMP. Prosecutor should prove NOT JUST that a crime occurred but that this particular defendant was present to commit it.

Constitution in Comma. - Gen Z ^{प्रेम} revolution

TJ, DJ, JR, Ethics, IOS

Alibi, JS,

Social Morality

what society
believes to be
right.

tension

what
Constitution
mandates

as
just

The tension betⁿ these two influences how
justice is conceived, interpreted & delivered.

Popular sentiment Vs. Constitutional Principles
Majoritarian Morality Vs. Minority Rights
Tradition vs Transformation.

- Constitutional Morality is not a sentiment.
It has to be cultivated.

- Dr. B.R. Ambedkar

- Tension betⁿ Social & Constitutional Morality:

Common Conflict Zones:

1. Personal Liberty vs. Community Standards.
 - Sexual Orientation & gender identity

- Live-in relationships
- Inter-faith marriages
- Reproductive choices
- Privacy Rights

2. Equality Vs. Traditional Hierarchy

- Caste-based practices
- Gender Discrimination
- Religious privileges
- Economic inequalities
- Access to public spaces.

3. Individual Rights Vs. Collective Beliefs

- Freedom of expression
- Religious practices
- Dietary choices
- Dress codes
- Cultural practices.

4. Modern Values vs. Ancient Customs

- Women's entry to religious places
- Widow remarriage

- Property Inheritance
- Child Marriage
- Honor Killing

HLA Hart:

An unjust law can still be valid law.

• KB Vs. State of Kerala (1973)

— Estd. basic str. doctrine to protect constitutional morality from majoritarian amendments.

• Naz Foundation v. NCT Delhi (2009)

— Decriminalized consensual homosexual acts [Const. Morality v. Public Morality]
 — "Moral Indignation, however strong, is not valid basis for overriding individual's fundamental rights."